Keep farmer access at the center of agricultural innovation

Submission 3 • Integrated public version • 12 November 2026

Christopher W. Laudando • Laudando & Associates LLC • Chico, California
FTC/USDA agricultural equipment inquiry • Docket FTC-2026-1585

> “It is a fundamental axiom of industrial democracy that you cannot allow private groups to exercise economic power over others uncurbed by law.”

— Thurman Arnold, Antitrust Division, 19 September 1941. [S3]

Farmers should be able to choose effective equipment because it works, is affordable and can be supported. They should not lose that choice because an independent developer is exhausted by litigation, because technology changes hands through collection pressure, or because commercial restrictions close off a less expensive design.

This third submission brings two connected issues into one record. **First, L&A is prepared to give up ownership and future commercial benefit in its AgCeption Broomrape Detection System to preserve access and program continuity for California processing tomato growers.** The purpose is to keep industry-supported technology available under litigation pressure, with successive stewardship options extending through [redacted]

Second, L&A asks whether compute-supplier, investor or equipment-company arrangements can restrict lower-cost alternatives. L&A’s development direction favors efficient use of computing, farm-local model capability and greater hardware choice. Carbon’s published NVIDIA investment and hardware relationship warrants examination of actual terms and conduct if it affects competition. Investment and technical collaboration alone do not establish wrongdoing.

These are distinct technical and legal tracks with a common consequence: farmer access to affordable equipment, independent support, usable data and competing approaches to agricultural automation. The confidential version provides the detailed commercial assumptions, private accounts and engineering targets supporting this request.

This public document is prepared for submission and does not represent agency acceptance, a completed IP transfer, or endorsement by any named stewardship candidate. Sensitive commercial detail and private communications are withheld from this version.

1 Broomrape continuity and the full succession sequence

The AgCeption Broomrape Detection System was developed with California processing tomato industry participation. L&A reports that litigation pressure and diminished operating capacity threaten the ability to support and expand it. The response is farmer-first stewardship: preserve practical access even if L&A relinquishes the associated ownership and future upside.

Role	Named recipient
Initial steward	[redacted]
Successor 1	[redacted]
Successor 2	[redacted]
Successor 3	[redacted]
Successor 4	[redacted]
Successor 5	[redacted]

The continuity purpose includes affordable deployment, support and further validation, preservation of industry investment, responsible treatment of farm-derived data and an orderly path to a successor if a steward elects not to continue. The names are disclosed to make that sequence visible; they do not imply that each organization has accepted an assignment or agreed to defend litigation.

L&A asks the agencies to examine whether foreign litigation and later money-judgment collection could be used as part of an exclusionary strategy affecting U.S. farmers. The concern is the potential loss of independent technology and the possibility that control of pricing, service or datasets would shift away from the access mission. These are issues for investigation, not findings that a judgment or collection action is unlawful.

The supplied Australian correspondence shows a default application and rescheduling. It does not establish a granted default judgment or completed U.S. enforcement. The public continuity exhibit preserves the stated purpose and succession framework; detailed terms, private discussions and financial assumptions are withheld.

2 Compute architecture, investment and farmer choice

L&A's stated engineering direction is to reduce computing cost per unit of useful crop protection, allow farm-specific model development and investigate shared controllers and alternative silicon. A September 2024 customer proposal documents FPGA-based agricultural data collection before the U.S. complaints. The confidential record also includes Laudando's account of vendor costs, scope growth, anticipated follow-on work and the relationship wind-down. These issues concern whether a viable path to lower-cost equipment was interrupted; they do not establish why the customer made its decisions. Private terms and supporting communications are reserved for confidential review.

Carbon publicly announced an NVentures investment in May 2024 and described 24 NVIDIA GPUs. A joint April 2026 release identifies RTX hardware for weeding and Jetson Orin for autonomy. Carbon's Large Plant Model also includes field-specific Plant Profiles. These published descriptions support examination of the hardware and model ecosystem, while qualifying a claim that Carbon uses only a global model without local adaptation. [S4,S10–S12]

The submitter's motive theory concerns both demand for edge hardware and accelerator/cloud-training demand from aggregated farm data. It asks whether a design that reduces those requirements per acre faced exclusionary pressure. The investigative question is whether financing, discounts, support or procurement terms restricted substitution, interoperability or local model capability. Actual workloads and terms must be established: a compatible carrier board or investor relationship alone is not proof of unlawful tying. Alternatives, market power, technical reasons and competitive effects matter. [S13,S15–S16]

The financing chronology must be accurate

Carbon's $70 million Series D announcement was on 21 October 2024; the U.S. complaints followed on 30 and 31 October. The announcement therefore preceded those complaints. The 2024 Form D gives an earlier first-sale date. Public notices do not establish the amount, payment date or conditions of each investor's participation. [S5–S6,S20–S21]

A financing round called "Series D" is distinct from Regulation D. Form D rules do not require a new public filing at the instant of every subsequent cash receipt. That reporting structure is a reason to request the underlying records; it is not evidence of a hidden NVIDIA investment or reporting violation. [S8–S9]

The agencies should compare investment commitments and actual payments with legal actions and documented knowledge of competing designs, and test legitimate business explanations alongside the submitter's concerns. The farmer harm to measure is loss of choice, higher total cost, reduced interoperability or interruption of useful technology—not simply a rival's use of more processors.

3 Public chronology and requested examination

Date	Public chronology entry
9 Apr 2024	Third-party patent submission under 37 CFR 1.290, dated in the supplied record. L&A attributes it to Carbon; the crop itself does not identify the application or submitter. [Confidential E5]
7 May 2024	Carbon announces NVentures investment, 28 days after the dated patent-submission entry. The announcement does not establish commitment or payment dates. [S4]
September 2024	An L&A customer proposal documents FPGA-based agricultural data collection. PDF creation metadata records September 25; delivery and recipient knowledge require correspondence. [Confidential E7]
17 / 21 Oct 2024	Form D first-sale date / announcement of the $70 million Series D round, with NVentures participating. The total round is not NVIDIA's individual investment. [S5–S6]
30–31 Oct 2024	U.S. complaints filed, 9–10 days after the Series D announcement. Form D filed October 31. [S6,S20–S21]
8 / 22 Oct 2025	First sale / filing dates in the later Form D. Investor-level amounts and cash-transfer dates require underlying records. [S7]
Feb / Apr 2026	Carbon announces Large Plant Model; later joint NVIDIA release describes hardware collaboration. [S10–S12]
11–12 Nov 2026	Carbon's counsel reports filing a default application. Australian chambers vacates the November 13 listing and relists for November 27 at 9:30 a.m. Melbourne time; no reason is stated.
12 Nov 2026 submission	L&A sets out broomrape continuity and the full stewardship sequence, alongside questions about competing compute architectures. This records stated intent, not a completed transfer.

The relisted hearing is 27 November at 9:30 a.m. Melbourne time / 26 November at 2:30 p.m. California time. It is a future listing, not a reported judgment. Chronological proximity alone does not establish coordination.

Joint request to FTC and USDA

Examine whether enforcement strategies, customer pressure or supplier/investor restrictions reduced access to independent agricultural technology. Obtain funding, procurement, licensing, data-rights and enforcement records; assess legitimate explanations and any evidence of exclusion.

Measure effects on prices, service, switching costs, farm-data portability and useful performance. Consider continuity structures without presuming successor commitments. Both tracks and the full succession remain public; private communications, detailed economics and unverified attribution leads remain confidential.

4 Public sources and redacted continuity exhibit

[S1] FTC and USDA, Request for Information on unfair or anticompetitive practices in agricultural equipment markets; docket FTC-2026-1585. Filing instructions and questions on tying, foreign terms and retaliation. Source

[S3] Thurman Arnold, address to the State Bar of California, 19 September 1941, printed page 11. Source of the opening quotation. Source

[S4] Carbon Robotics, NVentures investment announcement, 7 May 2024. Describes 24 NVIDIA GPUs. Announcement does not disclose NVentures' individual investment amount or funding date. Source

[S5] Carbon Robotics, $70 million Series D announcement, 21 October 2024. BOND-led round with NVentures participation. Source

[S6] Carbon Autonomous Robotic Systems Inc., Form D filed 31 October 2024; first sale 17 October 2024. Source

[S7] Carbon Autonomous Robotic Systems Inc., Form D filed 22 October 2025; first sale 8 October 2025. Filing and associated document. Source

[S8] SEC Form D instructions, including date of first sale. Source

[S9] 17 CFR 230.503, notice filing and amendment requirements for Regulation D offerings. Source

[S10] Carbon Robotics and NVIDIA joint release, 29 April 2026, From Farm to Fork. Identifies RTX 4000 weeding hardware and Jetson Orin autonomy hardware. Source

[S11] Carbon AI product description, including Large Plant Model and field-specific Plant Profiles. Company claims, not independent validation. Source

[S12] Carbon Robotics news index, Large Plant Model launch dated 2 February 2026. Source

[S13] NVIDIA Developer, Jetson Ecosystem. Describes partner-built custom and off-the-shelf hardware. Source

[S15] FTC, Tying the Sale of Two Products. Source

[S16] FTC, Exclusive Dealing or Requirements Contracts. Source

[S20] Carbon complaint, N.D. California, 3:24-cv-07542, filed 30 October 2024; copy hosted by Ex Parte. Source

[S21] Carbon complaint, E.D. California, 2:24-cv-03012, filed 31 October 2024; copy hosted by Ex Parte. Source

P1 — Public stewardship exhibit: the following ten pages reproduce the heavily redacted stewardship text from the earlier public Submission 3. The successor names remain visible. This narrative supplies the current framing and qualifications; the exhibit does not establish an executed transfer or institutional acceptance.

[redacted] Broomrape Program Continuity

[redacted] Broomrape Program Stewardship

[redacted] *Statement of Purpose and Proposed Commercial Terms*

[redacted]

Nonbinding statement of intent. This proposal creates no present transfer, license, option, lien, delegation or duty to complete a transaction.

Purpose

[redacted] developed the [redacted] with [redacted] and grower participation to give [redacted] processing tomato farmers an affordable way to detect, map and respond to broomrape. The program's value belongs in continued field use: capable service, ongoing validation, improved models and dependable access for growers of every size. [redacted] proposed transition to [redacted] is intended to preserve that outcome as litigation pressure has diminished [redacted] ability to scale and support the work. [redacted] processing tomato industry is contracting while growers face a persistent biological threat to the long-term viability of affected farms. In the [redacted] production area, affordable detection, technical support and continued validation are intended to protect both current grower independence and the future productive use of farmland. [redacted] views severe, unmanaged broomrape infestation as an existential risk to affected farming operations. [redacted]

[redacted] is prepared to relinquish ownership and future commercial upside so a capable institution can own and operate the broomrape program. [redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted] Broomrape Program Continuity

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]

[redacted]

[redacted] Broomrape Program Continuity

[redacted]

[redacted]

[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]

[redacted]

[redacted]

[redacted] Broomrape Program Continuity

[redacted]

[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]

[redacted]

[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]

[redacted]

[redacted]

[redacted] Broomrape Program Continuity

4 Continuity and response to external pressure

[redacted]

[redacted]

[redacted]

[redacted] Potential judgment, recognition and enforcement are future contingencies. [redacted]

[redacted]

[redacted]

[

5 Successor order and commitments

#	Candidate	[redacted]
1	[redacted]	[redacted]
2		[redacted]
3		[redacted]
4		[redacted]
5		[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted] Broomrape Program Continuity

[redacted]

[redacted] Broomrape Program Continuity

[redacted]

[redacted]

[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]	[redacted]	[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted] Broomrape Program Continuity

[redacted]

[redacted]

[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]
[redacted]	[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

[redacted]

REDACTED COPY